

**CV-25-011391 DOE, JANE vs CERES UNIFIED SCHOOL DISTRICT -
Plaintiff's Motion to Compel Defendant Ceres Unified School District's
Further Responses to Request for Production of Documents - GRANTED.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court notes that the parties have narrowed the dispute herein to issues surrounding the production of Defendant Barba's personnel file. As the Court understands the existing state of the dispute, Defendant is not opposed, in principle, to producing the personnel file but seeks to redact certain discrete items of information and to be relieved of the obligation to produce a privilege log for redacted or withheld materials. Therefore, the Court finds that Plaintiff has demonstrated good cause for the production of the subject materials herein. With regard to the defense's specific request regarding redactions and provision of a privilege log, the Court finds that the parties' stipulated protective order herein already contains an agreed procedure for handling purported confidential materials and information. In light of this, the Court declines to impose additional restrictions on this discovery absent an agreement by the parties. Further, the defense has provided no authority relieving it of the applicability of Code Civ. Proc. § 2031.240(c)(1) herein. Since the defense clearly intends to claim the application of privilege(s) to support the withholding of certain responsive materials, the Court finds that a privilege log should be provided so that Plaintiff's counsel can sufficiently evaluate the merits of the privilege claim(s). Lastly, the Court notes that the parties have had meet-and-confer communications with regard to the scope of the privilege claims and the affected documents, and the parties are strongly encouraged to continue such efforts to determine if the nature of the privilege(s) claimed and the materials being withheld is amenable to an agreement disposing of the need for a privilege log under the circumstances.

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